

IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.:
DIVISION:

KERI DECKER,

Plaintiff,

-vs-

AHMA AL-SAIDI and STAR VAN SYSTEMS,
INC.

Defendants.

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COMPLAINT AND DEMAND FOR JURY TRIAL

The Plaintiff, KERI DECKER, by and through his undersigned attorney, files this Complaint against the Defendants, AHMA AL-SAIDI, individually, and STAR VAN SYSTEMS, INC. allege as follows:

1. This is an action for damages in excess of \$30,000, exclusive of attorneys' fees, interest and costs, and Plaintiff hereby demand a trial by jury; accordingly, although, to file this complaint, undersigned counsel is being required by order of the Supreme Court of Florida to contemporaneously complete a civil cover sheet with a dollar figure as an estimated amount of claim for data collection and clerical processing purposes only, the full monetary value of the damages suffered by Plaintiff is yet to be determined and will be decided in a verdict by the jury that judges the facts of this action in compliance with Article I, Section 21, Florida Constitution.

2. That at all times material hereto, Plaintiff was a resident of Jacksonville, Duval County, Florida.

3. That at all times material hereto, the Defendant, AHMA AL-SAIDI, was a resident of Niagara Falls, Ontario, Canada.

4. That at all times material hereto, the Defendant, STAR VAN SYSTEMS, INC., was a foreign profit corporation authorized and doing business in Jacksonville, Duval County, Florida.

5. At all times material hereto, Defendant, AHMA AL-SAIDI, was driving a 2017 Freight Truck, License Plate No.: PA22539, while in the course and scope of his employment with STAR VAN SYSTEMS, INC., who owned the vehicle driven by Defendant, AHMA AL-SAIDI, at the time of the subject accident.

COUNT I – CLAIM OF NEGLIGENCE AGAINST AHMA AL-SAIDI

Plaintiff realleges and reavers Paragraphs 1 through 5 as if fully set forth herein and further states:

6. At all times material hereto, the Defendant, AHMA AL-SAIDI, owed a duty to the Plaintiff, KERI DECKER, to exercise reasonable care in the operation and control of the vehicle in his control so as not to injure the Plaintiff.

7. On or about February 14, 2020, at approximately 12:36 a.m. at Interstate 95, at or near the intersection with State Road 115, in Duval County, Florida, the Defendant, AHMA AL-SAIDI, negligently operated and/or maintained the above said motor vehicle so as to cause a collision with the vehicle being driven by Plaintiff, KERI DECKER.

8. As a result, Plaintiff, AHMA AL-SAIDI, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are either permanent or continuing and Plaintiff will suffer the

losses in the future. Plaintiff, KERI DECKER, has sustained permanent injuries within a reasonable degree of medical probability.

WHEREFORE, Plaintiff, KERI DECKER, demands judgment against Defendant, AHMA AL-SAIDI, and demands trial by jury on all issues triable of right by jury.

COUNT II –IMPUTED NEGLIGENCE OF STAR VAN SYSTEMS, INC.
THE DANGEROUS INSTRUMENTALITY DOCTRINE

Plaintiff realleges and reavers Paragraphs 1 through 5 as if fully set forth herein and further states:

9. At all times material hereto, the Defendant, STAR VAN SYSTEMS, INC., owned or had custody and control of said Ford vehicle, a Dangerous Instrumentality.

10. At all times material hereto, said vehicle was operated and driven by Defendant, AHMA AL-SAIDI, with the knowledge and consent of the Defendant, STAR VAN SYSTEMS, INC.

11. At all times material hereto, the Defendant, AHMA AL-SAIDI, owed a duty to the Plaintiff, KERI DECKER, to exercise reasonable care in the operation and control of the vehicle in his custody and control so as not to injure the Plaintiff.

12. On or about February 14, 2020, at approximately 12:36 a.m. at Interstate 95, at or near the intersection with State Road 115, in Duval County, Florida, the Defendant, AHMA AL-SAIDI, negligently operated and/or maintained the above said motor vehicle so as to cause a collision with the vehicle the Plaintiff, KERI DECKER, was driving.

13. The aforesaid negligent acts and omission of the Defendant, AHMA AL-SAIDI, are imputed to the Defendant, STAR VAN SYSTEMS, INC., under the Dangerous Instrumentality Doctrine.

14. As a direct and proximate result of the negligence of Defendant, STAR VAN SYSTEMS, INC., as imputed by the actions of AHMA AL-SAIDI, the Plaintiff, KERI DECKER, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future. The Plaintiff, KERI DECKER, has sustained permanent injuries within a reasonable degree of medical probability.

WHEREFORE, the Plaintiff, KERI DECKER, demands judgment for damages, prejudgment interest, interest and costs against the Defendant, STAR VAN SYSTEMS, INC., and demands trial by jury of all issues herein.

COUNT III - NEGLIGENCE OF DEFENDANT STAR VAN SYSTEMS, INC.
RESPONDEAT SUPERIOR/VICARIOUS LIABILITY

Plaintiff realleges and reavers Paragraphs 1 through 5 as if fully set forth herein and further states:

15. At all times material hereto, the Defendant, AHMA AL-SAIDI was an agent, employee or servant of the Defendant, STAR VAN SYSTEMS, INC.

16. At all times material hereto, the Defendant, STAR VAN SYSTEMS, INC., is vicariously liable for the acts of negligence and breach of duty by its agent, employee or servant, AHMA AL-SAIDI, committed within the course and scope of his employment.

17. At all times material hereto, the Defendant, AHMA AL-SAIDI, was operating the subject motor vehicle within the course and scope of his employment with the Defendant, STAR VAN SYSTEMS, INC.

18. At all times material hereto, the Defendant, AHMA AL-SAIDI owed a duty to the Plaintiff, KERI DECKER, to exercise reasonable care in the operation, control, maintenance, and employing safety measures of the vehicle in his custody and control so as not to subject other persons on the roadway, including the Plaintiff, KERI DECKER, to an unreasonable risk of harm.

19. On or about February 14, 2020, at approximately 12:36 a.m. at Interstate 95, at or near the intersection with State Road 115, in Duval County, Florida, the Defendant, AHMA AL-SAIDI, breached that duty by negligently operating, maintaining, controlling, and/or failing to employ safety measures of the above said motor vehicle so as to cause a collision with the vehicle, in which the Plaintiff, KERI DECKER, was operating.

20. As a direct and proximate result of the Defendant, AHMA AL-SAIDI'S, breach of duty, as imputed on Defendant, STAR VAN SYSTEMS, INC., the Plaintiff, KERI DECKER, suffered bodily injury and resulting pain, suffering, disability, aggravation of pre-existing conditions, mental anguish, loss of capacity for the enjoyment of life, loss of earnings or earning ability, medical expenses and other expenses.

21. The injuries sustained by the Plaintiff, KERI DECKER, are permanent within a reasonable degree of medical probability, are continuing in nature and the Plaintiff will continue to suffer such losses in the future.

WHEREFORE, the Plaintiff, KERI DECKER, demands judgment against the Defendant, STAR VAN SYSTEMS, INC., and demands trial by jury on all issues triable of right by jury.

Dated: June 8, 2022

FARAH & FARAH, P.A.

/s/ Jeffrey L. Gadd, Esquire

Jeffrey L. Gadd, Esquire

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